

Court No. - 39

Case :- WRIT - C No. - 5973 of 2021

Petitioner :- Kamlendra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Satish Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent.

The present writ petition is directed against the recovery notice dated 28.11.2020 issued by the respondent no.4 namely the Executive Engineer, Vidhyut Vitran Khand (II), Dakchinanchal Vidhut Vitran Nigam Ltd., Mainpuri.

Sri Baleshwar Chaturvedi, has received written instructions in the matter. He states that a case of theft of electricity under Section 135 of the Electricity Act, 2003 had been registered against the petitioner on the basis of an inspection done on 09.10.2020. The provisional notice dated 12.10.2020 had been sent through registered post at the address of the petitioner to which no reply had been given. The final assessment order had, thereafter, been passed and the recovery/demand notice dated 28.11.2020 had been issued.

The contention of learned counsel for the petitioner that the petitioner is a consumer of electricity and is paying electricity bills regularly and the electricity connection had illegally been disconnected, can only be entertained in an appeal to be filed under Section 127 of the Electricity Act, 2003.

Noticing the fact that the opportunity of filing objections has already been given to the petitioner, the final assessment order cannot be faulted.

It is open for the petitioner to file an appeal under Section 127 of the Electricity Act, 2003 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005.

The writ petition is, accordingly, ***disposed of.***

Order Date :- 15.3.2021

P Kesari